

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kelly Guillon	Team: Squad #17	CCRB Case #: 202308769	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Friday, 05/19/2023 8:20 AM	Location of Incident: 125th Street Subway Station (Downtown 4 Train)	18 Mo. SOL 11/19/2024	Precinct: 25		
Date/Time CV Reported Mon, 09/18/2023 2:33 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 09/18/2023 2:33 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Andy Luna	12828	956858	HLTH & WELL
2. PO Hector Ceren	15476	960350	TD 4
3. PO Edison Pulla-Astudillo	09427	965431	TD 4
4. DT1 Michael Machado	00784	928679	FIREARMS INV

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Dinell Sinanan	17588	962105	025 PCT
2. PO Oscar Apolinario	26271	932265	025 PCT
3. PO David Yakal	16439	970330	025 PCT
4. PO Monika Marjanovic	02769	963630	025 PCT
5. PO Jonathan Pagancolon	26304	972459	TD 4
6. PO Ronald Saintilus	03835	911377	TD 4
7. LT Luis Negron	00000	940504	TD 4
8. PO Joseph Rishkel	15651	957084	TD 4
9. SGT Christopher Alazraki	05511	949978	TD 4
10. PO Sumon Ahmed	29620	973204	TD 4

Officer(s)	Allegation	Investigator Recommendation
A . PO Edison Pulla-Astudillo	Abuse: Police Officer Edison Pulla-Astudillo improperly used his body-worn camera.	
B . PO Andy Luna	Abuse: Police Officer Andy Luna improperly used his body-worn camera.	
C . PO Hector Ceren	Discourtesy: Police Officer Hector Ceren spoke discourteously to § 87(2)(b)	
D . PO Hector Ceren	Off. Language: Police Officer Hector Ceren spoke offensively regarding § 87(2)(b)'s actual or perceived disability.	
E . PO Hector Ceren	Force: Police Officer Hector Ceren used physical force against § 87(2)(b)	
F . PO Edison Pulla-Astudillo	Force: Police Officer Edison Pulla-Astudillo used physical force against § 87(2)(b)	
G . PO Andy Luna	Force: Police Officer Andy Luna used physical force against § 87(2)(b)	
H . DT1 Michael Machado	Force: Detective Michael Machado used physical force against § 87(2)(b)	

Case Summary

§ 87(2)(b) filed this complaint with the CCRB on September 18, 2023.

On May 19, 2023, at approximately 08:20 AM, § 87(2)(b) was riding a southbound 4 train when he got into a verbal argument with another civilian. The train then stopped at the 125th Street subway station in Manhattan as Police Officer Hector Ceren and Police Officer Edison Pulla-Astudillo, from Transit District 4 (TD 4), entered the train car. PO Pulla-Astudillo activated his body-worn camera (BWC) approximately one minute after engaging with § 87(2)(b) (**Allegation A: Abuse of Authority, § 87(2)(g)**). Police Officer Andy Luna, from the Behavior Health Division Co-Response Program, then entered the train car and obtained a crime victim's statement while his BWC was not activated (**Allegation B: Abuse of Authority, § 87(2)(g)**). While communicating with § 87(2)(b) PO Ceren told him that he was "acting crazy" (**Allegation C: Discourtesy and Allegation D: Offensive Language, § 87(2)(g)**). § 87(2)(b) was taken to the ground by PO Ceren, PO Pulla-Astudillo, PO Luna, and Detective Michael Machado, from the Firearms Suppression Section, and handcuffed (**Allegations E – G: Force, § 87(2)(g)** and **Allegation H: Force, § 87(2)(g)**). § 87(2)(b) was transported to and lodged within the TD 4 stationhouse.

As per sealed arrest report § 87(2)(b), § 87(2)(b) was arrested § 87(2)(a) 160.50

The investigation received 21 BWC videos related to the incident (**BR 02**). § 87(2)(b) provided the investigation with his cellphone recording of the incident (**BR 19**).

Since the date of the incident, PO Luna has been promoted to the rank of sergeant and is currently assigned to TD 1. For the purposes of this report, he will be referred to by his rank and command at the time of the incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Edison Pulla-Astudillo improperly used his body-worn camera.

Allegation (B) Abuse of Authority: Police Officer Andy Luna improperly used his body-worn camera.

Allegation (C) Discourtesy: Police Officer Hector Ceren spoke discourteously to § 87(2)(b)

Allegation (D) Offensive Language: Police Officer Hector Ceren spoke offensively regarding § 87(2)(b)'s actual or perceived disability.

Allegation (E) Force: Police Officer Hector Ceren used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer Edison Pulla-Astudillo used physical force against § 87(2)(b)

Allegation (G) Force: Police Officer Andy Luna used physical force against § 87(2)(b)

Allegation (H) Force: Detective Michael Machado used physical force against § 87(2)(b)

At runtime 00:00 of PO Ceren's BWC footage (**BR 03**), the first minute of which has no audio, PO Ceren walks on the 125th Street 4/5/6 train platform alongside a stationary southbound 4 train. At runtime 00:49, PO Ceren approaches a female with blonde hair and a dark colored jacket and a male with dark hair and a red hoodie as they both point down the platform. PO Ceren continues to walk and at runtime 00:53, two additional individuals point at a specific train car entrance. PO Ceren approaches the train car entrance as § 87(2)(b) who is a black male wearing a black hoodie and holding a red bag, is within the car. At runtime 00:55, PO Ceren attempts to place his right

hand onto § 87(2)(b)'s left arm; however, § 87(2)(b) strikes the officer's hand with his right hand. PO Ceren then places his right hand onto the center of § 87(2)(b)'s chest before grabbing § 87(2)(b)'s left arm. As PO Ceren activates his BWC, § 87(2)(b) tells the officers not to touch him. At runtime 01:03, PO Pulla-Astudillo tells § 87(2)(b) to "relax" as § 87(2)(b) walks deeper inside the train and away from officers. PO Ceren follows § 87(2)(b) as he grabs onto his hoodie, and § 87(2)(b) continues to tell the officers to leave him alone and swats PO Ceren's hand away again. PO Ceren grabs § 87(2)(b)'s upper arms with both hands. PO Pulla-Astudillo tells § 87(2)(b) that officers wish to talk to him and § 87(2)(b) requests to exit the train. PO Ceren and PO Pulla-Astudillo continue generally holding § 87(2)(b)'s upper body. At runtime 01:29, § 87(2)(b) asks PO Ceren, "Ok so we're talking, why are you grabbing me?" and PO Ceren replies, "Because you're acting crazy." § 87(2)(b) repeatedly replies, "No I'm not." At runtime 01:32, § 87(2)(b) appears to attempt to break free of the officers as he raises his right arm, and the officers appear to struggle to hold him still as they try to speak with § 87(2)(b). At runtime 02:19, PO Luna enters the train car. At runtime 02:26, Det. Machado enters the train car. PO Ceren and PO Pulla-Astudillo continue to hold § 87(2)(b) and ask him to explain what happened but § 87(2)(b) largely asks the officers to let go of him and tells them, "Nothing happened." At runtime 03:10, PO Ceren tells PO Luna, "You guys go live," as he appears to gesture towards his BWC. PO Luna activates his BWC, tells PO Ceren that he "forgot" and thanks him. PO Ceren and PO Pulla-Astudillo continue to hold § 87(2)(b)'s upper body as officers attempt to speak with him, but § 87(2)(b) largely talks over them, complaining about officers touching him. At runtime 03:55, PO Ceren says, "We're putting him in cuffs" and § 87(2)(b) repeatedly tells the officers they are not going to do so. At runtime 04:15, PO Luna explains to § 87(2)(b) that the officers are going to place him in handcuffs and § 87(2)(b) replies, "You're not cuffing me." PO Pulla-Astudillo grabs § 87(2)(b)'s right arm as PO Ceren takes out handcuffs and grabs his left arm. At runtime 04:18, § 87(2)(b) moves his arms away from the officers and shifts his torso back and forth. PO Pulla-Astudillo grabs § 87(2)(b)'s arms from behind; § 87(2)(b) continues to resist by shifting his body. At runtime 04:21, PO Ceren bends down as he grabs § 87(2)(b)'s left leg. § 87(2)(b) appears to lose his balance as his body leans forward towards the ground. As his body is bent, PO Luna, PO Pulla-Astudillo, and Det. Machado have their arms on § 87(2)(b)'s back as they guide him onto the ground. This action causes § 87(2)(b) to slowly fall onto the ground as he lands in a prone position. At runtime 04:29, Det. Machado tells § 87(2)(b) to "stop resisting." PO Ceren begins to rear handcuff § 87(2)(b) as Det. Machado, PO Pulla-Astudillo, and PO Luna hold § 87(2)(b) on the ground. At runtime 04:50, § 87(2)(b) is fully handcuffed as he is lifted off the ground by officers and escorted out of the train.

At runtime 00:00 of PO Pulla-Astudillo's BWC footage (**BR 04**), the first minute of which has no audio, PO Pulla-Astudillo and PO Ceren enter the train car and begin restraining § 87(2)(b). At runtime 1:00, PO Pulla-Astudillo activates his BWC as indicated by two beeps.

At runtime 00:00 of PO Luna's BWC footage (**BR 05**), the first minute of which has no audio, PO Luna approaches the train car where PO Ceren and PO Pulla-Astudillo are restraining § 87(2)(b). At runtime 00:06, PO Luna enters the train car and assists the officers with § 87(2)(b). At runtime 00:15, PO Luna turns away from § 87(2)(b) and approaches a male wearing a black hoodie seated on the car as he and Det. Machado speak with and escort him out of the train. PO Luna appears to speak with several other civilians in the train car. At runtime 00:58, PO Ceren gestures to his BWC with his left index finger as PO Luna activates his BWC at runtime 1:00, as indicated by two beeps.

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b). Prior to officers arriving at the scene, § 87(2)(b) got into a verbal altercation with another male civilian. The 4 train then stopped at the incident location and § 87(2)(b) told the male civilian to exit the train so they could fight. PO Ceren and PO Pulla-Astudillo then responded to the incident location as they immediately told him to step off of the train. § 87(2)(b)

§ 87(2)(b) instead walked deeper within the train as the officers followed him inside and grabbed him. § 87(2)(b) was then “slam[med]” onto the ground face down and handcuffed.

§ 87(2)(g)

§ 87(2)(b) Prior to arriving at the incident location, the officer was with PO Pulla-Astudillo when they both received a harassment job regarding individuals fighting within the train. They were not given any pedigree information nor were they told how many individuals were involved in the fight. As the officers made it to the incident location, multiple civilians voluntarily pointed out § 87(2)(b) as the suspect of the harassment job. He was then detained within the train car because the officers were investigating the incident and required his statement, however he did not cooperate with officers by continuously requesting to leave. PO Ceren made contact with § 87(2)(b) § 87(2)(b)'s left arm to keep him from leaving the train car; however, § 87(2)(b) was “very combative” and hostile. The officers placed § 87(2)(b) in handcuffs to gain compliance from him and maintain the safety of himself and other individuals within the subway platform. § 87(2)(b) actively resisted the officers’ attempts to place him in handcuffs by pulling his arms away from them so PO Ceren decided to take § 87(2)(b) to the ground so that the officer could easily handcuff him. The officer denied slamming § 87(2)(b) onto the ground with significant force and explained that he was placed onto the ground softly. PO Ceren denied telling § 87(2)(b) that he was, “acting crazy” and when showed his own BWC footage of that moment he acknowledged that he could hear an individual saying the comment but did not know if it was said by a different officer or a civilian within the train car.

PO Pulla-Astudillo’s statement § 87(2)(g)

§ 87(2)(b) The officer had an independent recollection of activating his BWC prior to entering the train car and engaging with § 87(2)(b) but he acknowledged once shown his BWC footage that he had activated his approximately one minute after engaging with § 87(2)(b). The officer did not know why he made a late activation. PO Pulla-Astudillo denied hearing an officer tell § 87(2)(b) that he was “acting crazy.”

§ 87(2)(g)

§ 87(2)(b) The officer responded to the incident location after receiving a call for back-up by PO Ceren and PO Pulla-Astudillo regarding a harassment job. Upon arriving at the scene, he spoke with an MTA employee who directed him to the victim of the reported harassment. The victim reported to PO Luna that § 87(2)(b) struck him on his cheek, which caused swelling and redness. PO Luna explained that he had a delayed BWC activation because he initially forgot. The officer would have been required to activate his BWC prior to stepping onto the train car and while collecting a statement from the alleged victim.

Event § 87(2)(b) (BR 10) reports that at the time and date of the incident a transit booth made a 911 report regarding a fight occurring within the 4 train. The suspect was then arrested and brought to TD 4’s stationhouse.

§ 87(2)(a) 160.50

§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

NYPD Patrol Guide Procedure 212-123 (BR 12) states that a member of service is required to activate their BWC prior to engaging in any police action and to record interactions that may hold

evidentiary value. It defines a police action as any police service or law enforcement, or investigative activity conducted in furtherance of official duties, such as a call for service.

As per the BWC manual published by Axon (**BR 20**), the manufacturer of the NYPD's BWCs, when a BWC is on but not recording, it is in buffering mode, a 30- to 120-second period that automatically records video but does not record audio and will not permanently save the captured video. In order to record and active event mode, an officer must double-press the event button on the camera, which will start recording and saving audio and video, as well as the silent buffer period just before activation. At the start of event mode, the BWC will beep twice.

§ 87(2)(g)

Both officers, however, activated their BWCs approximately one minute afterward, indicated by the audio being absent from their BWCs recordings until the one-minute mark, which captures two beeps, reflected by Axon's BWC manual. § 87(2)(g)

NYPD Administrative Guide Procedure 304-06 (**BR 13**) states that police officers are prohibited from using discourteous or disrespectful remarks when referring to another person's disability.

While PO Ceren was in the train car with § 87(2)(b) the officer grabbed onto the center of his hoodie and § 87(2)(b) turned to the officer and questioned why he was grabbing him. A voice that matched PO Ceren's cadence then replies, "Because you're acting crazy." § 87(2)(b), § 87(2)(g)

NYPD Patrol Guide Procedure 221-01 and NYPD Patrol Guide Procedure 221-02 (**BR 14**) states that members of service may use the reasonable force necessary to gain compliance, control, or custody of an uncooperative subject. In determining whether the use of force is reasonable, several factors are to be considered including but not limited to the nature and severity of the crime, actions taken by the subject and their duration, immediacy of the perceived threat or harm to those present, and whether the subject is actively resisting custody and/or attempting to flee.

BWC footage shows that throughout the entire incident, § 87(2)(b) was continuously non-compliant and combative with police officers as he requested to leave the train car, struck at PO Ceren's hand, and pulled away his arms when told that he was going to be placed in handcuffs. § 87(2)(b), § 87(2)(g)

The NYPD's Department Advocate's Officer (DAO) confirmed that Det. Machado retired from the NYPD on July 1, 2023 (**BR 15**).

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one other CCRB complaint and has been named as a victim in nine other allegations (**BR 16**):
 - § 87(2)(b)
- PO Ceren has been a member of service for eight years and has been a subject in two other CCRB complaints and five other allegations, none of which were substantiated. § 87(2)(g)
- PO Pulla-Astudillo has been a member of service for six years and has been a subject in two other CCRB complaints and nine other allegations, none of which were substantiated. § 87(2)(g)
- PO Luna has been a member of service for nine years and this is the first CCRB complaint to which he has been a subject.
- Det. Machado was a member of service for an unknown amount of time before retiring and this is the first CCRB complaint to which he was a subject.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As per the NYC Comptroller's Office, as of May 8, 2023, no Notice of Claim had been filed about this incident (**BR 17**).

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 17

Investigator:	Kelly Guillon	Investigator Kelly Guillon	May 22, 2024
	Signature	Print Title & Name	Date

Squad Leader:	Benjamin Shelton	AIM Benjamin Shelton	05/22/24
	Signature	Print Title & Name	Date

Reviewer: _____

Signature

Print Title & Name

Date